CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 34745/02
by Konstantin Valentinovich KOPALIN
against Russia

The European Court of Human Rights (First Section), sitting on 22 May 2008 as a Chamber composed of:

Christos Rozakis, *President,*
Anatoly Kovler,
Elisabeth Steiner,
Dean Spielmann,
Sverre Erik Jebens,
Giorgio Malinverni,
George Nicolaou, *judges,*

and Søren Nielsen, *Section Registrar*,

Having regard to the above application lodged on 12 August 2002,

Having regard to the Court's decision to examine jointly the admissibility and merits of the case (Article 29 § 3 of the Convention),

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Konstantin Valentinovich Kopalin, is a Russian national who was born in 1972 and lives in Arkhangelsk. He was represented before the Court by Mr I. Telyatyev, a lawyer practising in Arkhangelsk. The Russian Government ("the Government") were

represented by Mr P. Laptev, the Representative of the Russian Federation at the European Court of Human Rights.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

As a seaman serving in the Extreme North, the applicant was entitled to a reimbursement of his holiday travel expenses. His employer, a State meteorological enterprise, had defaulted on this obligation, and the applicant had to apply to a court.

On 20 February 2002 the Solombalskiy District Court of Arkhangelsk held for the applicant and awarded him 9,088.03 Russian roubles. On 21 March 2002 the enterprise paid this award to the applicant.

In separate proceedings, the applicant's trade union tried to bring a civil action on the applicant's behalf. Domestic courts found that the trade union had no authority to represent the applicant. The final decision in this regard was given by the Arkhangelsk Regional Court on 16 April 2001.

B. Relevant domestic law

Under section 9 of the Federal Law on Enforcement Proceedings of 21 July 1997, a bailiff must enforce a judgment within two months. Under section 242.2.6 of the Budget Code of 31 July 1998, the Ministry of Finance must enforce a judgment within three months.

COMPLAINTS

1. The applicant complained about the non-enforcement of the judgment.

2. The applicant also complained under Article 6, 11, and 14 of the Convention that his trade union could not represent him in the other proceedings.

THE LAW

1. The applicant complained about the non-enforcement of the judgment. The Court examined this complaint under Article 6 § 1 of the Convention and Article 1 of Protocol No. 1, which, as far as relevant, read as follows:

Article 6

"In the determination of his civil rights and obligations ..., everyone is entitled to a fair ... hearing ... by [a] ... tribunal..."

Article 1 of Protocol No. 1

"Every natural or legal person is entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law.

The preceding provisions shall not, however, in any way impair the right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest or to secure the payment of taxes or other contributions or penalties."

The Government asked the Court to strike the application out of its list of cases. The judgment had been fully enforced on 21 March 2002. The application had been written unclearly, but the applicant certainly had not complained about the non-enforcement. By complaining to the Court, the applicant had sought to receive the judgment debt twice.

The applicant deplored the impossibility to enforce State debts through the bailiff's service.

The Court will continue to examine this complaint, because in his application the applicant had in substance raised the issue of non-enforcement.

The case file contains no information as to when the judgment had become binding. But in any event the enforcement could not have lasted longer than one month.

Whilst an unreasonably long delay in the enforcement of a binding judgment may breach the Convention (see *Burdov v. Russia*, no. 59498/00, ECHR 2002-III), the delay of one month is *prima facie* compatible with the Convention.

It follows that this complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

2. The applicant also complained under Articles 6, 11, and 14 of the Convention that his trade union could not represent him in the other proceedings. However, in the light of all the material in its possession, and in so far as the matters complained of are within its competence, the Court finds that they do not disclose any appearance of a violation of the rights and freedoms set out in the Convention or its Protocols.

It follows that this complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Declares the application inadmissible.

Søren Nielsen
Registrar

Christos Rozakis
President